

BACKGROUND GUIDE

# Salem Witch Trials

First Witch Trials of the Salem Village of  
Massachussets Bay Colony of 1692

LANGUAGE

ENGLISH

FORMAT

MOOT COURT

DEPUTY UNDER-SECRETARIAT-GENERAL

SPECIALIZED & JUDICIAL COMMITTEES



# MONUA XVI

## UNIVERSIDAD DE LOS ANDES MODEL UNITED NATIONS

The Universidad de los Andes Model United Nations (MONUA) is an academic conference organized by students of Universidad de los Andes with the support of the Faculty of Social Sciences. Throughout more than fifteen editions, MONUA has established itself as a distinguished forum where secondary school and university students from Colombia and around the world come together to engage in diplomacy, debate, and the collaborative development of solutions to contemporary global challenges.

Through the representation of Member States, international organizations, institutions, and other relevant actors, participants research, negotiate, deliberate, and collaborate on political, social, economic, legal, and humanitarian issues. Beyond competition, MONUA is an educational experience designed to strengthen critical thinking, public speaking, leadership, empathy, and respect for diverse perspectives.

Inclusion and social responsibility remain fundamental pillars of the conference. Through initiatives such as Learning with MONUA, MONUA Fellowship, and other educational programs, MONUA seeks to make diplomacy, negotiation, and leadership opportunities accessible to children and young people from a wide variety of backgrounds.

Under the theme #EmpoweringEveryVoice, MONUA XVI reaffirms its commitment to creating spaces where every participant can contribute, learn, and advocate for their ideas through academic excellence, mutual respect, and international cooperation.

This edition will feature educational committees, United Nations bodies, specialized and legal committees, crisis cabinets, as well as media and interconnectivity committees. These Background Guides are intended to serve as the starting point for delegates' research, while the MONUA XVI Handbook outlines the conference's Rules of Procedure, code of conduct, and general policies.

MONUA XVI invites every participant to exchange ideas, embrace new perspectives, overcome challenges, and develop solutions that extend beyond the committee room. Each Background Guide has been carefully prepared to support delegates throughout their research process and to provide the foundation for informed, rigorous, and responsible participation.

# Table of Contents

---

|                                                                                   |    |
|-----------------------------------------------------------------------------------|----|
| 1. Welcome Letters .....                                                          | 4  |
| Secretary-General .....                                                           | 5  |
| Academic Secretary .....                                                          | 6  |
| Director-General .....                                                            | 7  |
| Deputy Academic Secretary .....                                                   | 8  |
| Deputy Director-General .....                                                     | 9  |
| USG: Juan José Carreño and Sofía Carrascal .....                                  | 10 |
| Chair: Andrea Monsalve .....                                                      | 12 |
| 2. Introduction & Context .....                                                   | 14 |
| 2.1. Introduction to the Committee: .....                                         | 14 |
| 2.2. Historical Context and Origins of the Crisis: .....                          | 14 |
| 2.2.1. Puritan Society and the Massachusetts Bay Colony .....                     | 14 |
| 2.2.2. Origins of the Crisis .....                                                | 15 |
| 2.2.3. Religion, Law, and Witchcraft .....                                        | 15 |
| 2.2.4. Spectral Evidence and Judicial Practices .....                             | 16 |
| 2.2.5. Social Tensions and Marginalization .....                                  | 16 |
| 2.2.6. End of the Trials .....                                                    | 16 |
| 3. Current Situation and Cases .....                                              | 18 |
| 3.1. Current Situation: .....                                                     | 18 |
| 3.2. Cases Before the Court: .....                                                | 18 |
| 4. Applicable Law and Legal Framework .....                                       | 19 |
| 4.1. Biblical Law: .....                                                          | 19 |
| 4.2. Massachusetts Bay Colony Laws: (1641) .....                                  | 20 |
| 5. Procedure and Rules of Evidence .....                                          | 21 |
| 5.1. Committee Procedure: .....                                                   | 21 |
| 5.1.1. Opening Procedure .....                                                    | 21 |
| 5.1.2. Procedure for Each Microcase .....                                         | 22 |
| 5.1.3. Motions Available During Debate: .....                                     | 23 |
| 5.2. Judicial Practices Relevant to the Committee: .....                          | 24 |
| 5.2.1. Examination Procedures .....                                               | 24 |
| 5.2.2. Admissible Forms of Evidence .....                                         | 24 |
| 5.2.3. Restrictions and Limitations .....                                         | 24 |
| 5.3. Evidence .....                                                               | 24 |
| 5.3.1. Evaluation of Evidence .....                                               | 27 |
| 6. Roles and Documents .....                                                      | 28 |
| 6.1. Roles .....                                                                  | 28 |
| 6.2. Previous Document Structure: .....                                           | 29 |
| <b>For the Prosecution:</b> 5th of August 2026, until midnight (11:59 p.m.) ..... | 30 |
| <b>For the Defendants:</b> 10th of August 2026, until midnight (11:59 p.m.) ..... | 30 |
| 7. Qarmas .....                                                                   | 31 |
| 8. References .....                                                               | 32 |

# 1. Welcome Letters

---

Board of Directors · Senior Staff · Committee Dais

Opening messages from the members of the Board of Directors, Senior Staff, and Committee Dais, whose leadership, commitment, and dedication make MONUA XVI possible.





## Secretary-General

**Salome Rodríguez Ballesteros**

s.rodriquezb2345@uniandes.edu.co

Dear Participants of MONUA XVI,

If you are reading this letter, it means you are about to embark on an experience that I am certain will leave a lasting impact on you in many ways. Beyond debates, position papers, and resolutions, MONUA is a place to learn from others, discover new perspectives, and appreciate the value of diplomacy, dialogue, and cooperation.

My name is Salome Rodríguez Ballesteros, and it is my great honor to welcome you this year as the Secretary-General of MONUA XVI. I am currently pursuing a degree in Global Studies and Political Science, with concentrations in International Law and Economics. Like many of you, I found in Model United Nations a place where I learned that words, when used with respect and purpose, have the power to transform realities. I remember exactly what it feels like to arrive at your first conference with a mixture of excitement, uncertainty, and high expectations. I also remember the thrill of delivering my first speech, meeting extraordinary people, and realizing that these experiences are not about always being right, but about being willing to listen, learn, and grow. That is the experience I hope each of you will have at MONUA XVI.

Whether this is your very first conference or you have participated in many before, every committee is a new opportunity to challenge yourself, step outside your comfort zone, and discover abilities you may not yet know you possess. Do not hesitate to raise your placard, defend your ideas with respect, and build bridges even when differences arise. After all, that is what the United Nations stands for, and it is the spirit we strive to cultivate at MONUA. I want you to know that this edition has been prepared with great care by a team that truly believes in the transformative impact of these experiences. My greatest hope is that, when MONUA XVI comes to an end, you will leave with far more than an award or a certificate. I hope you leave with lasting friendships, meaningful lessons, and the confidence to continue using your voice wherever life takes you.

Thank you for placing your trust in us and for being part of this edition. I hope you enjoy every debate, every conversation, and every moment throughout the conference. I am confident that this experience will be only the beginning of many great things to come.

With my warmest regards,

Salome Rodríguez Ballesteros

Secretary-General

MONUA XVI – Universidad de Los Andes



## Academic Secretary

**Juliana Solano Sossa**

[j.solanos2@uniandes.edu.co](mailto:j.solanos2@uniandes.edu.co)

Dear delegates, sponsors, staff members, and all those whom it may concern,

My name is Juliana Solano, and I have the honor of serving as the Academic Secretary of MONUA XVI. I am currently in my eighth semester of Law and am pursuing a double degree in Business Administration at Universidad de los Andes. Throughout my journey in Model United Nations, I have found in these spaces not only a setting for rigorous academic training, but also a project that has allowed me to grow, challenge myself, and build a community of which I have felt deeply proud since the very first moment I became a part of it.

Today, I would like to warmly welcome you to this conference. We are truly delighted that you have decided to take on this challenge and become part of this edition. MONUA is not only a place to learn theory, debate, or refine argumentative skills—which are undoubtedly fundamental—but also a space to build experiences, create genuine connections, and discover the potential that each and every one of you possesses. My invitation is for you to approach this process not only with discipline, but also with intention and dedication. Allow yourselves to go beyond what is expected, to question, propose, and build. Take advantage of every debate, every intervention, and every interaction as an opportunity for growth. I hope this conference will be a space that challenges you academically, while also leaving a mark on you personally. May you find here not only a stage on which to excel, but also a place to share, make friends, and enjoy the process.

Welcome to MONUA XVI.

With my full commitment to accompany you throughout this process,

Juliana Solano Sossa  
Academic Secretary  
MONUA XVI



## Director-General

**Samir David Fernández Yunis**

s.fernandezy@uniandes.edu.co

Dear Participants, welcome to the sixteenth edition of MONUA.

My name is Samir David Fernández Yunis, and it is my pleasure to serve as the Director-General of MONUA XVI. I am currently in my seventh semester of Electronic Engineering at Universidad de los Andes, and for several years, Model United Nations has been a fundamental part of my academic and personal journey. From my first conferences in high school to my experience in the university MUN circuit, these experiences have challenged me, helped me grow, and allowed me to understand the world through a wide range of perspectives.

Throughout this journey, I have come to understand that MUN is a space where ideas, interests, and worldviews that often seem irreconcilable come together. It is precisely within that diversity that the most meaningful experiences emerge. To disagree is not to confront one another, but rather to engage with ideas, institutions, and perspectives that deserve to be questioned with rigor, integrity, and respect. That is the spirit we strive to foster at MONUA. For this edition, we set ourselves a clear objective: to deliver a conference that meets the standards of the most competitive delegations in Colombia and the region while preserving the international character that defines MONUA. The participation of delegations from across Latin America not only elevates the quality of debate but also transforms this conference into a true academic and cultural meeting point.

Our goal is to offer a conference that is ambitious, thoughtfully designed, and carefully executed in every academic and logistical aspect. Beyond committees and debates, MONUA is an experience. I hope these four days become not only an intellectual challenge, but also an opportunity to meet remarkable people, build lasting connections, and discover your own potential. I would like to express my sincere gratitude to everyone who has made this project possible: our academic team, the Board of Directors, our staff, and each one of you for placing your trust in this process. MONUA exists because of this collective commitment, and I am confident that this edition will meet your expectations and leave you with far more than outstanding results—it will leave you with unforgettable experiences and lasting connections.

With respect and sincere regards,

Samir David Fernández Yunis  
Director-General  
MONUA XVI

## WELCOME LETTERS

## BOARD OF DIRECTORS



## Deputy Academic Secretary

**Jose Alejandro Gutiérrez Cifuentes**

ja.gutierrezc1@uniandes.edu.co

Dear Sponsors, Delegates, Observers, Staff Members, Parents, and Anyone Else Who Decided to Read This Letter,

Welcome to MONUA! A place to debate, to think, and—most importantly—to question.

My name is Jose Alejandro Gutiérrez Cifuentes, and for the sixteenth edition of MONUA, I am delighted to serve as the Deputy Academic Secretary of the conference.

I am currently pursuing a master's degree in Physics at Universidad de los Andes, and ever since I was young, I have loved movies, philosophy, and wonderfully terrible jokes. Somehow, all of those interests found a home in crisis committees, where I developed not only those passions but also the skills that have shaped the person I am today. Through MUN, I have learned to approach problems from multiple perspectives and to appreciate the value of interdisciplinary thinking.

Despite the many people who have tried to convince me that my academic background has little to do with Model United Nations, I have come to believe quite the opposite. When our goal is to pursue truth and strive to do things well, we cannot rely solely on the exact sciences. We also need the tools that dialogue, diplomacy, and debate provide. I hope this conference becomes, for you, what it has been for me: an opportunity to grow and, in our own small way, make the world a little better. I also hope that throughout this experience you find a space to collaborate with honesty, creativity, and an open mind, making the most of everything MONUA has to offer.

If this message resonates with even one person by the end of MONUA XVI, I will gladly quote two of my country's greatest icons with complete confidence: «There is something about Colombians: we never lose hope of doing better every single time,» and «We've lowered the ignorance levels just a tiny bit, professor,» by Jaime Garzón and La Cevichica, respectively.

Thank you, best of luck, and I'll see you at MONUA.

With warm regards,

Jose Alejandro Gutiérrez Cifuentes

Deputy Academic Secretary

MONUA XVI





## Deputy Director-General

**María José Penagos**

[mj.penagos@uniandes.edu.co](mailto:mj.penagos@uniandes.edu.co)

Dear delegates, sponsors, staff members, and everyone who is part of this story today: welcome to the sixteenth edition of MONUA!

My name is María José Penagos Granados, and I have the immense privilege of serving as the Deputy Secretary-General of MONUA XVI. I am currently pursuing a double major in Government and Public Affairs and Business Administration at Universidad de los Andes.

Ever since I was very young, Model United Nations has held a special place in my life. It taught me that ideas have the power to transform realities, that listening is just as important as speaking, and that true leadership is, above all, about creating opportunities for others to shine.

To me, MONUA is so much more than a conference. It is a place that inspires, challenges, and transforms. It is where people from different backgrounds and perspectives come together and discover that dialogue will always be more powerful than division, and that the most meaningful solutions emerge when we choose to build them together. I truly believe that change begins with those who dare to participate, to question, and to believe they can make a difference.

Thank you for placing your trust in this project and for choosing to be part of this edition. Behind every detail is a team that has worked with dedication, enthusiasm, and genuine care to create an unforgettable experience for all of you. I hope you will feel that commitment in every committee, every debate, and every moment you share throughout these days.

I encourage you to embrace MONUA with enthusiasm and generosity. Make the most of every speech, every hallway conversation, and every person you have the chance to meet. Allow yourselves to learn, to make mistakes, to grow, and to be surprised. Don't be afraid to raise your placard, stand up for your ideas, or listen openly to perspectives that challenge your own.

When MONUA XVI comes to an end, I hope you leave with far more than wonderful memories. I hope you take home lasting friendships, lessons that will stay with you for years to come, and the certainty that each of you has the power to create a positive impact. This conference is now yours—embrace it with curiosity, conviction, and an open heart.

With warmth, respect, and admiration,  
María José Penagos Granados  
Deputy Director-General MONUA XVI

## WELCOME LETTERS

## Deputy Under-Secretary-General

## JOINT LETTER



USG

**Juan José Carreño  
Matiz**Under-Secretary-General  
carreno-  
-juan@javeriana.edu.co

USG

**Sofía Carrascal  
Duarte**Under-Secretary-General  
s.carrascal11@uniandes.edu.co

## Honorable Delegates:

Please be welcomed to MONUA XVI and to one of the most innovative SGAs of the whole model. Please be welcomed to the Judicial and Specialized Committees SGA, where each committee pushes the barriers of innovation and of what's possible inside the procedure and the thematics we offer.

The committees that shape our SGA hope to bring you as close as possible to the reality of negotiation, action and interaction inside the diverse institutions that are represented within the body. The current issues addressed in each committee serve to introduce the delegates -for those who choose to embark on this journey with us—to the core subjects of some of the most significant discussions at every level: ranging from national to international matters, and from international law and the balance of power to their reflection in the domestic landscape on the tug-of-war between institutions, political power, and their respective discourses-.

We hope that amidst the variety of topics, committees, and procedures, you find a home with us, challenging and expanding your capabilities and knowledge, both as delegates and as individuals. These committees are designed to challenge delegates, to compel you to be creative in your approaches and understanding of the issues, while also weighing and analyzing the underlying context of the matters under discussion. We hope that through these guides and the three days of debate, you discover the same passion with which we built these committees and crafted this experience for each of you.

Finally, we thank you for the effort, passion, and hard work you have invested in preparing for our committees. The dedication and faith you have shown -matching the countless hours our team, and especially our Academic Staff, have poured into preparing these committees-serve as the greatest reward we could ask for. We sincerely hope you enjoy every moment of the committees we have assembled; just as we push traditional formats to their limits -as we seek to innovate and expand the boundaries of what a Model UN conference can achieve-

we hope to expand your knowledge and capacities in the same way. We hope you discover within yourselves that same spirit of innovation that defines our SGA, and that you apply it to these committees, your lives, and your learning journeys.

Go forth; for if you aim for the moon, you will land among the stars.

***All yours:***

Juan José Carreño Matiz & Sofía Carrascal Duarte

## WELCOME LETTERS

# Salem Witch Trials



Chair

## Andrea Monsalve

[andreav.monsalve@urosario.edu.co](mailto:andreav.monsalve@urosario.edu.co)

Dear Delegates:

It is my greatest pleasure to welcome you to this committee. My name is Andrea Valentina Monsalve Alfonso, and I have the honor of serving as your Dais for the Salem Witch Trials. I am a Law student at Rosario University with a Minor in Criminal Investigation. I am truly excited to accompany you throughout what I believe will be one of the most challenging, thought-provoking, and unique committees of the Model.

When I first began researching the Salem Witch Trials, I expected to find a simple historical episode driven by superstition. Instead, I discovered a fascinating intersection between law, religion, fear, and politics. What began as accusations rooted in suspicion soon evolved into legal proceedings that forever marked history, demonstrating how institutions meant to deliver justice can become vulnerable when influenced by collective panic and unquestioned beliefs.

Developing this Academic Guide has been an incredibly rewarding experience. Every source, every testimony, and every legal procedure I studied reinforced the complexity of these events. The Salem trials are far more than a story about alleged witches; they serve as a reminder of the importance of due process, critical thinking, and the responsibility carried by those entrusted with administering justice. I hope that, as delegates, you will not only immerse yourselves in the historical setting but also reflect upon the broader legal and ethical questions that remain relevant even centuries later.

This committee will demand much more than historical knowledge. It will require persuasive argumentation, careful examination of evidence, strategic decision-making, and the ability to balance religious convictions, social pressures, and legal principles. Every testimony you hear and every verdict you reach will shape the course of the Trials.

Most importantly, I encourage each of you to embrace your role. Challenge assumptions, question evidence, defend your positions with confidence, and remember that every decision has conse-

quences. Whether you seek justice, conviction, or acquittal, your participation will ultimately determine how history unfolds within this committee.

I sincerely hope this experience is as memorable and enriching for you as it has been for me while preparing it. I look forward to witnessing your debates, your creativity, and your dedication throughout the committee.

I wish you the best of luck, and I look forward to seeing you.

*Sincerely*

**Andrea Monsalve**

## Section

## 2. Introduction & Context

---

### ■ 2.1. Introduction to the Committee:

---

The Salem Witch Trials Committee invites delegates to examine one of the most infamous episodes of judicial persecution and collective hysteria in colonial American history. Set in 1692 in the Massachusetts Bay Colony, within British colonial America, this committee recreates the legal and religious atmosphere of Salem Village, where accusations of witchcraft rapidly evolved into imprisonment, public trials, and executions ranging all levels of society.

In Puritan New England, religion and law were inseparable, the colony operated under a deeply theocratic structure in which moral behavior was considered essential not only for spiritual salvation but also for social stability. Any perceived deviation from religious doctrine could therefore be interpreted as a threat to the entire community. Within this context, fear of the Devil, belief in demonic possession, and suspicion toward marginalized individuals created the conditions for mass accusations and judicial abuse.

This committee will follow a historically grounded inquisitorial procedure inspired by colonial legal practices and Puritan religious doctrine. Delegates will assume the roles of judges, magistrates, ministers, and of the accused. In these positions, participants will confront the tension between faith, justice, public order, and individual rights.

The committee combines historical simulation with judicial debate, challenging delegates to analyze evidence, question testimonies, and determine the fate of the accused while operating under the legal and cultural limitations of the seventeenth century. Beyond the historical recreation, the committee also encourages reflection on the dangers of extremism, moral panic, and the collapse of due process under social fear.

### ■ 2.2. Historical Context and Origins of the Crisis:

---

#### 2.2.1. Puritan Society and the Massachusetts Bay Colony

The Salem Witch Trials occurred in 1692 within the Massachusetts Bay Colony, a Puritan settlement established in colonial New England. Puritan communities believed they had formed



---

a “covenant with God” meaning that the survival of society depended on strict obedience to religious law and moral discipline as found in the Bible.

Salem Village was characterized by a strong religious authority and limited separation between church and government, where both usually interacted and where religious law legitimized colonial government. This generated a society characterised by a widespread fear of sin and divine punishment, social surveillance and public moral control. Economic rivalries, familiar disputes and political instability were high after years of frontier conflict with native tribes and disease outbreaks. Within this environment, accusations of witchcraft were not understood as superstition alone, but as legitimate threats against the spiritual and political order of the colony.

### 2.2.2. Origins of the Crisis

The crisis began in early 1692 when **Betty Parris and Abigail Williams**, two young girls from Salem Village, started displaying violent fits, convulsions, screaming episodes, and started claiming to be attacked by invisible forces. Local physicians could not identify a natural explanation for their behavior and concluded that the girls had been victims of witchcraft.

Under pressure from ministers and local authorities, the girls accused several individuals of practicing witchcraft and serving the Devil. Among the first accused were:

- **Tituba, an enslaved woman in Reverend Samuel Parris’ household.**
- **Sarah Good, a homeless beggar.**
- **Sarah Osborne, a socially controversial woman involved in property disputes.**

These accusations triggered a wave of panic that rapidly spread throughout Salem Village and neighboring communities, soon degenerating into mass hysteria and trials at every level of society.

### 2.2.3. Religion, Law, and Witchcraft

In Puritan New England, witchcraft was considered both a religious sin and a criminal offense. Colonial authorities believed witches entered into pacts with Satan and threatened the covenant between God and the community, thus endangering the entirety of the colony. As a result, witchcraft was classified as a capital crime punishable by death under colonial law.

Religious doctrine strongly influenced legal proceedings. Ministers, magistrates, and judges frequently interpreted illness, crop failures, unexplained deaths, or strange behavior as evidence of demonic activity and used it as pretense for the presence of witchcraft in the community. The trials reflected a judicial system where religious belief influenced criminal investigations, where confessions were often prioritized over material evidence, public fear and hysteria affected judicial neutrality, community reputation, as well as quarrels between families shaped the credibility of those accused and spectral evidence was accepted as valid testimony inside the courtroom.

#### 2.2.4. Spectral Evidence and Judicial Practices

One of the most controversial aspects of the Salem trials was the use of "spectral evidence." This referred to testimony claiming that the spirit or apparition of the accused appeared to victims in dreams or visions. Although such evidence lacked physical proof, Puritan courts often accepted it because many authorities believed the Devil could act through witches.

Given the time, the usual judicial practices associated with due process as well with standard judicial procedure were uncommon. Judicial practices were often rough, with judges accusing themselves of those on trial. Other common judicial practices included:

- Public interrogations.
- Coercive questioning.
- Pressure to confess.
- Indirect testimony.
- Reputation-based accusations.
- Reliance on religious interpretation rather than empirical evidence.

Confessions frequently resulted in reduced punishment, while individuals who denied accusations were often treated with greater suspicion and treated even more harshly inside the courtroom.

#### 2.2.5. Social Tensions and Marginalization

Many accused individuals occupied vulnerable social positions. Several were:

- Poor or economically dependent.
- Widowed or socially isolated women.
- Individuals involved in disputes over land or inheritance.
- Persons who challenged traditional Puritan norms.

The trials therefore reflected not only religious fear, but also deeper social tensions involving gender, authority, and class conflict, mediated through local rivalries. The fear predated on existing social cleavages and on outcasts or marginalized groups inside puritan society.

#### 2.2.6. End of the Trials

By late 1692, criticism of the proceedings increased as accusations spread toward respected members of society. Influential political and religious leaders began questioning the legitimacy of spectral evidence and the reliability of the courts. Governor William Phips eventually dissolved the Court of Oyer and Terminer and prohibited further arrests based solely on spectral testimony.

---

By the end of the crisis more than 200 people had been accused, around 30 individuals were convicted, 19 people were executed by hanging and Giles Corey died after being pressed to death for refusing to enter a plea.

## Section

## 3. Current Situation and Cases

### ■ 3.1. Current Situation:

Delegates are situated in Salem Village in March 1692. The first accusations of witchcraft have already emerged, and colonial authorities are preparing formal judicial proceedings against several accused individuals.

Fear has spread rapidly throughout the community. Religious leaders warn that Satan may be operating within Salem, while families pressure authorities to punish those believed responsible for the afflictions affecting young girls in the village.

The Court will now examine four major cases.

### ■ 3.2. Cases Before the Court:

| Accused individual    | Indi-<br>vidual | Historical Profile                                                                                                                                     | Main Accusations                                                                            | Possible Sentence  | Sen-<br>tence |
|-----------------------|-----------------|--------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------|--------------------|---------------|
| <i>Tituba</i>         |                 | Enslaved woman serving Reverend Samuel Parris. Her background and unfamiliar cultural practices caused suspicion among Puritan authorities.            | Confession of practicing witchcraft and communicating with demonic entities.                | Imprisonment       |               |
| <i>Sarah Osborne</i>  |                 | Resident of Salem Village involved in disputes regarding property and inheritance. Frequently criticized for disregarding Puritan social expectations. | Alleged participation in witchcraft gatherings and association with the Devil.              | Imprisonment       |               |
| <i>Bridget Bishop</i> |                 | Tavern owner known for unconventional behavior, colorful clothing, and prior accusations of witchcraft.                                                | Alleged use of witchcraft practices and possession of objects associated with dark rituals. | Death by execution |               |
| <i>Sarah Good</i>     |                 | Homeless beggars are marginalized by the community and frequently involved within in public conflicts.                                                 | Alleged use of witchcraft to cause illness and suffering within Salem Village.              | Death by execution |               |

## Section

## 4. Applicable Law and Legal Framework

---

The court shall apply a mixture between biblical and colonial law. The courts shall also use *Malleus Maleficarum* as a guide to aid them in prosecution:

### ■ 4.1. Biblical Law:

---

Puritan legal authorities considered Scripture a direct source of legal legitimacy. The following passages are particularly relevant:

*"Thou shalt not suffer a witch to live."*

#### **Exodus 22:18**

This verse served as the principal biblical justification for the criminalization of witchcraft and the application of capital punishment.

*"A man also or woman that hath a familiar spirit, or that is a wizard, shall surely be put to death."*

#### **Leviticus 20:27**

This passage reinforced the belief that communication with spirits constituted a direct offense against divine order.

*"There shall not be found among you any one that maketh his son or his daughter to pass through the fire, or that useth divination, or an observer of times, or an enchanter, or a witch. Or a charmer, or a consulter with familiar spirits, or a wizard, or a necromancer. For all that do these things are an abomination unto the Lord: and because of these abominations the Lord thy God doth drive them out from before thee."*

---

**Deuteronomy 18:10–12**

Condemns divination, sorcery, enchantments, and consultation with spirits.

Puritan ministers frequently cited this text to justify investigations related to alleged demonic practices.

**■ 4.2. Massachusetts Bay Colony Laws: (1641)**

---

The Massachusetts Body of Liberties and subsequent colonial laws established witchcraft as a capital offense:

**Capital Crimes*****Witchcraft:***

"If any man or woman be a witch, that is, hath or consulteth with a familiar spirit, they shall be put to death."

***Blasphemy:***

Direct attacks against God, Scripture, or divine authority could result in capital punishment.

***False Witness in Capital Cases***

Individuals intentionally presenting false testimony in cases involving execution could themselves face severe punishment.

## Section

## 5. Procedure and Rules of Evidence

### ■ 5.1. Committee Procedure:

This committee combines traditional MUN motions with a historically inspired judicial process. The committee will proceed through individual micro-cases, each involving investigations, testimonies, deliberations, and sentencing.

Unlike modern criminal courts, the Salem Court operates under a seventeenth-century Puritan legal framework in which spiritual reality is considered as real and legally relevant as physical material reality. The Court assumes that Satan actively intervenes in human affairs and that witches may enter into voluntary covenants with the Devil. Consequently, evidence related to supernatural activity may be admitted when judges determine that it reveals the existence of such a covenant.

The Court shall evaluate evidence according to biblical doctrine, colonial law, ministerial testimony, community reputation, and established demonological writings, including the principles described in the *Malleus Maleficarum* ("The Hammer of Witches"), one of the most influential European treatises concerning the detection and prosecution of witchcraft.

Although not an official source of Massachusetts law, the *Malleus Maleficarum* provides theological justification for many investigative practices by arguing that witches rarely leave conventional evidence and therefore must often be identified through indirect signs, testimony, confession, and manifestations of supernatural activity.

Both *Amicus Curiae* -the **Governor of Massachusetts and the Minister**- may weigh in the decisions and be called upon by the judges for their opinion in regards to evidence in their respective fields -public opinion and good standing inside the community as well as on religious matters, following each of their capacities.

#### 5.1.1. Opening Procedure

1. Motion to open session.



2. Roll call.
3. Reading of committee context.
4. Motion to establish agenda order.
5. Opening of the first micro-case.

### 5.1.2. Procedure for Each Microcase

- **Stage 1 – Presentation of Facts**

- The Prosecutor presents the accusations.
- The Governor and Minister may provide political/religious observations.
- The Court formally identifies the accused.
- The accused entered a plea. (*Guilty/Innocent*)

- **Stage 2 – Reading of Charges**

- The Prosecutor reads the formal accusations, facts and relevant legal foundations. (20 mins)
- The Defendant reads their considerations on the accusations, facts and relevant legal foundations. (20 mins)

- **Stage 3 – Presentation of Evidence**

After deliberation on evidence regarding its admissibility, delegates may call forward testimony and evidence. Evidence may include:

- Witness testimony.
- Spectral evidence.
- Religious statements.
- Material evidence.
- Confessions.
- Reputation-based testimony.

The judges determine admissibility of evidence, although *amicus curiae* may weigh in on the determination of admissibility but **MAY NOT** declare evidence admissible or inadmissible.

- **Stage 4 – Witness Examination and Interrogation**

- Judges may interrogate witnesses.
- The Prosecutor may question the accused.
- Ministers and religious authorities may provide interpretations.
- Witnesses may contradict one another.

---

## • Stage 5 – Deliberation

Defendants and the prosecution will read their final allegations. *(30 mins each)* After it, Judges enter moderated or unmoderated debate. Delegates must discuss:

- Reliability of evidence.
- Credibility of witnesses.
- Religious implications.
- Public order concerns.
- Appropriate punishment.

## • Stage 6 – Sentencing

The presiding judge drafts the final sentence. Possible outcomes include:

- Acquittal.
- Imprisonment.
- Public punishment.
- Execution.

Sentences are final and non-appealable.

### 5.1.3. Motions Available During Debate:

The following motions are permitted:

- Motion to open a session.
- Motion to create an agenda. *(may only be closed)*
- Motion to open the agenda.
- Motion to open the micro-case.
- Motion for informal discussion to deliberate on the presiding judge.
- Motion to determine the presiding judge. *(voted by simple majority)*
- Motion to read the facts.
- Motion for reading of the charges.
- Motion for presentation of evidence.
- Lobbying time/Formal debate for non-binding communication.
- Motion for informal debate for the judges' deliberation.
- Motion for reading of the sentence.

---

## ■ 5.2. Judicial Practices Relevant to the Committee:

---

### 5.2.1. Examination Procedures

- Magistrates issue warrants for arrest.
- Accused individuals may be publicly interrogated.
- Witnesses may testify regarding behavior, reputation, or spiritual visions.
- Confessions may influence sentencing outcomes.

### 5.2.2. Admissible Forms of Evidence

The Court may consider:

- Testimonial evidence.
- Spectral evidence.
- Religious testimony.
- Confessions.
- Material objects allegedly associated with witchcraft.
- Reputation and public conduct.

### 5.2.3. Restrictions and Limitations

Although colonial law discouraged unlawful coercion, judicial authorities frequently operated under intense social and religious pressure. Delegates should therefore understand that the committee reflects a legal system where modern standards of due process did not fully exist.

---

## ■ 5.3. Evidence

---

The Court may admit the following categories of evidence:

### Spectral Evidence

Spectral evidence consists of testimony asserting that the spirit, apparition, or specter of the accused appeared before a victim. Examples include:

- Visions of the accused attacking a victim.
- Dreams involving the accused.
- Claims that an invisible force bearing the accused's likeness caused pain or illness.
- Statements that the accused appeared in spirit form and demanded allegiance to Satan.
- Reports that the specter of the accused attempted to force a witness to sign the Devil's Book.

### Justification

---

The Court accepts spectral evidence because many Puritan ministers believed that Satan could employ witches as instruments to afflict the innocent.

According to the demonological reasoning found in the *Malleus Maleficarum*, supernatural attacks frequently leave no physical traces. Therefore, testimony regarding spiritual manifestations may reveal the presence of witchcraft even when material proof is unavailable. Judges shall determine whether multiple independent testimonies strengthen the credibility of spectral claims.

However, judges may also consider the possibility that Satan could deceive witnesses through false apparitions.

### **Affliction Evidence**

The Court may hear testimony concerning physical or emotional suffering allegedly caused by witchcraft.

Examples include:

- Sudden convulsions.
- Fits and seizures.
- Unexplained paralysis.
- Sudden blindness.
- Violent screaming episodes.
- Mysterious pains occurring in the presence of the accused.

If such symptoms cease or intensify during examination of the accused, judges may consider this relevant evidence.

### **Confessions**

A confession is considered one of the strongest forms of evidence.

The Court may consider:

- Admission of a pact with Satan.
- Admission of attending witch gatherings.
- Admission of using familiars or demonic spirits.
- Identification of additional witches.

---

Within Puritan doctrine, confession may indicate repentance and willingness to return to God's grace. Consequently, a confession may reduce the severity of punishment, although it does not guarantee acquittal.

### **Testimony Regarding Reputation and Character**

The Court may receive testimony concerning the moral character of the accused.

Relevant factors include:

- Persistent disputes with neighbors.
- Frequent accusations of immoral behavior.
- Disrespect toward religious authority.
- Failure to attend worship.
- Prior suspicions of witchcraft.
- Public threats followed by misfortune.

According to both Puritan belief and the reasoning of the *Malleus Maleficarum*, witchcraft often reveals itself through patterns of conduct rather than isolated acts.

### **Religious and Ministerial Testimony**

Ordained ministers may offer expert interpretations concerning spiritual matters.

Ministers may testify regarding:

- Signs of demonic influence.
- Theological significance of alleged acts.
- Consistency of accusations with Scripture.
- Spiritual danger posed to the community.

Such testimony shall carry substantial weight due to the religious nature of the Court.

### **Material and Physical Evidence**

The Court may consider physical objects allegedly connected to witchcraft.

Examples include:

- Dolls or "poppets" containing pins.
- Strange books or writings.

- 
- Objects used in divination.
  - Unusual charms.
  - Marks believed to be witch's marks.
  - Items associated with occult rituals.

Judges shall determine the relevance of such objects based on testimony and surrounding circumstances.

### **The Witch's Mark Examination**

Following practices described in European witchcraft prosecutions and referenced in the *Malleus Maleficarum*, the Court may order examination of the accused's body.

Investigators may search for:

- Unusual scars.
- Moles.
- Birthmarks.
- Insensitive areas of skin.

Such marks may be interpreted as evidence of a covenant with Satan if corroborated by other testimony.

The presence of a mark alone shall not automatically establish guilt.

#### **5.3.1. Evaluation of Evidence**

Because witchcraft is considered a hidden crime (*crimen exceptum*), judges are not required to rely exclusively upon direct material proof. The Court may convict when several forms of evidence collectively indicate the existence of a pact with the Devil.

Judges should consider:

1. Consistency of witness testimony.
2. Number of independent accusations.
3. Religious credibility of witnesses.
4. Presence of confessions.
5. Spectral manifestations.
6. Threat posed to public order.
7. Protection of the covenant between God and the colony.

The preservation of Salem's spiritual and social stability shall remain a central concern throughout all proceedings.

## Section

## 6. Roles and Documents

---

### ■ 6.1. Roles

---

The three roles that are present inside the courtroom (Defense/Prosecution, Judges and Amicus Curiae) will have different weights inside the courtroom and will influence the dynamics present in each one of the micro cases.

Both parts of the case will have the roles and faculties usually reserved for them in committees of the same quality, in which they'll be granted the opportunity to defend themselves, read the charges as well as enter a plea and examine evidence, call upon witnesses and present evidence. The Accused, even as they are part of the trials, may defend themselves and examine the evidence levied against them -given the absence of formal lawyers for the accused of witchcraft-.

The Judges will deliberate on the case with the input of both Amicus Curiae, but only they will be able to vote, amend or reject the interpretations, as well as the opinion of the chief Judge. Meanwhile, the chief judge will be the judge in charge of directing and organizing the flow of the micro case -this position is not detrimental to the standing of the DAIS and the powers they have over the flow of the committee- as well as redacting and leading the debate on the result of the case, admissibility of evidence and the appropriate punishment. Judges are expected to act as such and with decorum, but may have some flexibility in their approach given the historical context.

The role of the Amicus Curiae will be that of a judge with voice, but no vote in the discussion of the case. Given that both Phips and Parris are men of good standing and important role models in puritan and colonial society, their opinions shall carry weight in the discussion and may be heard specially when there is evidence regarding the area which they govern -public order, reputation and character for Governor Phips, and spectral as well as religious evidence or interpretation- regarding the case. They shall be privy to the discussions inside the chamber and be granted the ability to question, judge and accuse the people inside the committee as well as evaluate evidence.

This right to be heard and to question with predilection in certain aspects, is not detrimental to the right of the judges to ask, question, accuse or interpret the evidence and propositions of both sides, as they are not exclusive domains of the judges or the Amicus Curiae. They shall not be elected as Chief Judge during the selection process as well as cast any vote regarding it.

The assignment will be as follows:

- **Parts:**
  - **Accused:** *Sarah Osborne & Sarah Good*
  - **Prosecutors:** *Sr. Thomas Newton & Sr. Anthony Checkley*
- **Judges:**
  - *William Stoughton*
  - *John Hawthorn*
  - *Samuel Sewall*
  - *Sr. Waitstill Winthrop*
- **Amicus Curiae:**
  - *Sr. William Phips – Governor of Massachusetts*
  - *Sr. Samuel Parris – Minister of Salem*

## ■ 6.2. Previous Document Structure:

The parts must deliver a memorial of the case in its standard form beforehand. Just one memorial that covers all micro cases will be enough, given that it explicitly states in each part what corresponds to what microcase. The same goes for the evidence annex.

The structure must be the following:

- Identification of the parts.
- Charges against the accused.
  - For the defendant this will be changed to a pronouncement on the charges, and a plea.
- Claims and facts of the case with their proper relation
  - For the defendant this will be replaced by pronouncement on the facts of the case and the facts they consider relevant.
- Relevant Case law and its relations to the facts - *Either biblical text, colonial law and the Maleficium Maleficarum.*
- Qualification of the acts and pretensions.
- Punishment sought. – **Only for the prosecutors.**
- Annex of proofs segregated by micro case.



---

The date of delivery of these documents will be set as follows (the submission should be sent to the Dais email address):

**For the Prosecution: 5th of August 2026, until midnight (11:59 p.m.)**

**For the Defendants: 10th of August 2026, until midnight (11:59 p.m.)**

As for the judges and *Amicus Curiae*, they will not have to deliver documents before the beginning of the session. But they will have to work on two documents, those being:

- **Interlocutory Orders:** This will contain the motivations and explanations for the exclusion or inclusion of evidence brought to court. They must contain sufficient motivation and explanation of the relevance -or lack thereof- of the evidence in question and in case of new evidence describe it in sufficient detail as to be produced.
- **Court Ruling(s):** This must succinctly resume and expose the discussions that took place in the court as well as the reasoning of the court and the final punishment. It must identify the parts, the judges -and the chief judge in charge of the discussion- as well as retell the arguments, proofs and elements that were proven by both parts. It must then expose the relation and typification of said actions to the law, the reasoning for said typification as well as the punishment the court saw fit.

## Section

## 7. Qarmas

---

1. Can justice exist within a system where religion and law are inseparable?
2. Should spectral evidence be considered sufficient for criminal conviction?
3. To what extent should public fear influence judicial decisions?
4. Is preserving social order more important than protecting individual rights?
5. Can confessions obtained under fear or pressure be considered legitimate?
6. What responsibilities do judges and ministers have during periods of collective panic?
7. How should the Court balance religious doctrine with fairness and judicial caution?
8. Are accusations against socially marginalized individuals inherently unreliable?
9. Should the Court prioritize punishment, repentance, or public stability?
10. What limits, if any, should exist regarding the authority of religious institutions over criminal justice?

## Section

## 8. References

---

Boyer, P., & Nissenbaum, S. (1974). *Salem Possessed: The Social Origins of Witchcraft*. Harvard University Press.

Hoffer, P. C. (1997). *The Salem Witchcraft Trials: A Legal History*. University Press of Kansas.

The Holy Bible. (n.d.). *The Holy Bible, King James Version*.

Karlsen, C. F. (1998). *The Devil in the Shape of a Woman: Witchcraft in Colonial New England*. W. W. Norton & Company.

Massachusetts Bay Colony. (1641,). *The Massachusetts Body of Liberties*.

Massachusetts Historical Society. (n.d.). *Salem Witch Trials Historical Records*.

Norton, M. B. (2002). *In the Devil's Snare: The Salem Witchcraft Crisis of 1692*. Alfred A. Knopf.

Roach, M. K. (2002). *The Salem Witch Trials: A Day-by-Day Chronicle of a Community Under Siege*. Cooper Square Press.

University of Virginia. (n.d.). *Salem Witch Trials Documentary Archive and Transcription Project*.